

		The Motion for Final Approval will be heard on December 10, 2026 at 2:00 p.m. in Department CX102. All papers for the Motion for Final Approval must be filed and served no later than sixteen (16) court days before the hearing date. If Class Counsel cannot meet this deadline, then they must request a continuance of the hearing. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. At the Final Approval hearing, evidence supporting the request for an award of attorneys' fees should be presented in the form of time records or a summary of time spent on the substantive tasks, so as to enable the Court to evaluate the lodestar and costs claimed. Class Counsel should state by declaration whether time records were kept and created contemporaneously or otherwise. The Court also reminds Class Counsel that although a determination regarding the amount of the attorneys' fees award will not be made until final approval, the Court is unlikely to approve attorneys' fees in excess of thirty percent (30%) of the gross settlement amount absent unique circumstances. As a result, Class Counsel should address whether any such unique circumstances exist. Also at the Final Approval hearing, Class Counsel must also disclose whether counsel has any fee-splitting arrangement with any other counsel, or confirm none exists Additionally, at the Final Approval hearing, Plaintiffs and Class Counsel must provide detailed declarations describing circumstances to justify the requested enhancement awards and addressing the factors set forth in <i>Golba v. Dick's Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251, 1272, and <i>Clark v. American Residential Services, LLC</i> (2009) 175 Cal.App.4th 785, 804. Each Plaintiff must provide an estimate of the hours spent participating in this litigation. Plaintiffs are ordered to give notice of this Court's ruling within five (5) court days, and file proof of service.
109	Garcia-Reyes vs. Fastcility Corporation, a California corporation 2024-01430431	Motion for Approval of Class Settlement The Court has reviewed the supplemental materials provided by Class Counsel and finds that they adequately address the previously identified issues. Accordingly, Joaquin Garcia-Reyes's Motion for Preliminary Approval of Class Action and PAGA Settlement is GRANTED. This is a putative wage-and-hour class action and PAGA matter. On 10/4/2024, Plaintiff Joaquin Garcia-Reyes, individually and on behalf of all others similarly situated, filed a complaint against Defendant Fastcility Corporation. (ROA #2.) The operative complaint is the first amended complaint ("FAC"), filed on 1/6/2025, alleging various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #23.) Defendant answered the FAC on 2/5/2025. (ROA #25.) On 10/30/2025, Plaintiff filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Class Action

and PAGA Settlement Agreement (“Settlement Agreement”) and Class Notice for the Court’s review. The motion seeks preliminary approval of the parties’ proposed settlement of Plaintiff’s class and PAGA claims for the non-reversionary gross settlement amount (GSA) of \$257,000. The GSA includes \$20,000 allocated for PAGA penalties.

On 3/12/2026, the Court continued the first hearing on the motion and asked Class Counsel to address various issues. (ROA #76.) Counsel has submitted supplemental materials, including an Amended Class Action and PAGA Settlement Agreement (“Amended Settlement Agreement”) and an amended Class Notice.

Based on a review of all papers submitted, including the Amended Settlement Agreement, the Court finds the settlement falls within the range of what is considered fair and reasonable, subject to a final determination at the Final Approval hearing.

Within five (5) court days, Class Counsel must provide a further amended Proposed Order that, in the first paragraph, identifies the Amended Settlement Agreement rather than the original settlement agreement, and that also attaches all referenced exhibits.

The Motion for Final Approval will be heard on December 3, 2026 at 2:00 p.m. in Department CX102. All papers for the Motion for Final Approval must be filed and served no later than sixteen (16) court days before the hearing date. If Class Counsel cannot meet this deadline, then they must request a continuance of the hearing. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions.

At the Final Approval hearing, evidence supporting the request for an award of attorneys’ fees should be presented in the form of time records or a summary of time spent on the substantive tasks, so as to enable the Court to evaluate the lodestar and costs claimed. Class Counsel should state by declaration whether time records were kept and created contemporaneously or otherwise. The Court also reminds Class Counsel that although a determination regarding the amount of the attorneys’ fees award will not be made until final approval, the Court is unlikely to approve attorneys’ fees in excess of thirty percent (30%) of the GSA absent unique circumstances. As a result, Class Counsel should address whether any such unique circumstances exist.

Also at the Final Approval hearing, Class Counsel must also attest as to the details of any fee-splitting arrangement with any other counsel.

Additionally, at the Final Approval hearing, Plaintiff and Class Counsel must provide detailed declarations describing circumstances to justify the requested enhancement award and addressing the factors set forth in *Golba v. Dick’s Sporting Goods, Inc.* (2015) 238 Cal.App.4th 1251, 1272, and *Clark v. American Residential Services, LLC* (2009) 175 Cal.App.4th 785, 804. Plaintiff must provide an estimate of the hours spent participating in this litigation.

		Plaintiff to give notice of this Court’s ruling, including to the LWDA, within five (5) court days, and file proof of service.
110	Lopez vs. CH Robinson Company, Inc. 2022-01259258	Motion for Approval of Class Settlement Plaintiff Javier Lopez’s Motion for Preliminary Approval of Class Action and PAGA Settlement is CONTINUED to September 17, 2026, at 2:00 p.m. in Department CX102 in order to give Class Counsel an opportunity to address the issues identified below. This is a putative class action and PAGA matter involving alleged Labor Code violations and unfair business practices. On 5/12/2022, Plaintiff Javier Lopez, individually and on behalf of all others similarly situated, filed a class action complaint against Defendant CH Robinson Company, Inc. (ROA #2.) On 7/13/2022, Defendant answered. (ROA #17.) On 9/9/2022, the Court took notice that Plaintiff’s separate PAGA action is a related case—i.e., Plaintiff’s separate PAGA action against the same Defendant: <i>Lopez vs. CH Robinson Company, Inc.</i>, Case No. 30-2022-01273893. (ROA #23.) On 10/19/2022, Defendant filed a motion to compel arbitration. (ROA #36.) On 1/20/2023, the Court partially granted the motion and compelled Plaintiff’s individual claim for waiting time penalties under Labor Code section 203 to arbitration, but stayed the remaining claims in this action, including the class action claim for waiting time penalties. (ROA #82.) On 2/10/2023, Defendant filed a notice of appeal of the Court’s order partially denying Defendant’s motion to compel arbitration. (ROA #86.) On 11/8/2024, the Court of Appeal affirmed in part and reversed in part. The appellate court “conclude[d] substantial evidence supports the trial court’s finding that Lopez is a transportation worker within the ambit of section 1’s exemption, following the two-step analysis in <i>Southwest Airlines Co. v. Saxon</i> (2022) 596 U.S. 450, 455–459 (<i>Saxon</i>). Because the FAA is inapplicable, [the appellate court] h[e]ld the individual reimbursement claim under Labor Code section 2802 is arbitrable.” (ROA #129.) Accordingly, the appellate court reversed “[t]he trial court’s order denying Robinson’s motion to compel arbitration as to Lopez’s individual reimbursement claim under Labor Code section 2802” and “remanded to the trial court to enter an